Hi, Neighbor!

Silver Creek March 2025 Newsletter

UPCOMING CLUBHOUSE EVENTS:

Mar 5 Ladies' Bunko Night
Dinner at 6:30, Bunko at 7:00
Please bring a prize to share

Mar 10 HOA Dinner at 6:00 p.m.
Potluck This Month!
Please bring
- Main Dish (Last Names A through I)
- Salad/Side (Last Names J through R)
- Dessert (Last Names S through Z)

Mar 19 Sit 'N Chat 11:00 a.m.
(please see notice below)

Mar 20 HOA Monthly Board Meeting
6:30 p.m.

NEW SIT 'N CHAT FOCUS

Since last August Silver Creek residents (mostly women) have been getting together at the clubhouse each month for conversation while working on projects. They call it *Sit 'n Chat*.

Some participants recently have been stuffing toy bears for Dolls of Hope.The dolls are given to children in refugee camps and other crisis situations.

The group has decided to continue pursuing humanitarian projects in the months ahead. You are welcome to come and work on those projects, or on your own project, or to just come for the visiting.

The *chatters* welcome suggestions for any humanitarian cause you may wish to support.

This month they are accepting donations of fabric and batting or a few dollars to buy those items.

For more information, call Julie Gill (801) 390-3031, or Barbara Loe (940) 367-8040.

YOUR INFORMATION IN SILVER CREEK DIRECTORY

On March 21st Silver Creek will publish an on-line directory of all homeowners.

Under Utah Code § 16-6a-1601(3), HOAs are required to maintain a membership list with the names and addresses of all members, which can be accessed by other members with a "proper purpose."

Silver Creek's on-line directory will be accessible only through the password-protected Silver Creek Pay-HOA Portal.

That means the information will be available only to your Silver Creek neighbors and not to the general public.

Information that will be included:

Unit Number
Name(s) of Owner(s)
Phone Number(s)

The directory will be searchable by both name and by unit number.

This will be a useful tool for homeowners and your Board encourages you to participate.

However, if, for specific privacy reasons, you object to sharing your contact information with your neighbors, then you may opt-out by notifying the Board at SilvercreekBoardMembers@gmail.com no later than March 15th.

LITTERING

Nobody living in Silver Creek would *ever* dump trash in their neighbor's yard!

We know that!

Curiously, however, such consideration is sometimes lacking it comes to landscape waste or pet waste being tossed over a back fence.

The land outside Silver Creek's perimeter walls is either private or public property.

PLEASE!

In either case, the St. George City code prohibits dumping or disposal of rubbish, garbage, or other waste there.

A violation is a Class B misdemeanor, a criminal offense that can result in up to six months in jail and a fine of up to $1,000.

Please extend the same courtesy and respect for the environment outside as well as inside the walls of our community.

ESTATE SALES

Your Association Board adopted a resolution at its February meeting that permits an Owner to conduct an Estate Sale from their Townhome on a one-time basis, subject to specified terms and conditions.

An Estate Sale is defined as

"A sale or auction to dispose of a substantial portion of the property/possessions owned by the Owner of a Townhome…who is recently deceased or who must dispose of their property/possessions to facilitate a move."

Authorization to conduct any Estate Sale is subject to a number of terms and conditions including written approval from the Board of Trustees and appropriate notice to surrounding Owners.

The entire resolution and permitting form are attached to this newsletter and will be posted on **silvercreek-hoa.org** under Governing Documents > Resolutions.

No other sales in the community are permitted.

OUTDOOR POOL OPENING

The target date for opening the outdoor pool is March 24, the last Monday of the month, weather permitting, of course.

The schedule for exclusive use of the outdoor pool for

Lap Swimming and **Lap Walking**
will again be
8:00 a.m. – 9:15 a.m. M-F

And the schedule for exclusive use for
Water Aerobics
will again be
9:15 a.m. – 10:30 a.m. M-F
(holiday periods excepted)

Please remember, these restrictions are activity-based, not age based.

COLOR QUIZ

Did you know that there is an official color for all home exteriors and yard walls in Silver Creek?

Yep!

Test your color perception here to see if you can tell which one it is:

a	b	c	d	e
SW 6098 Pacer White	SW 6099 Sand Dollar	SW 7002 Downy	SW 7101 Futon	SW 6091 Reliable White

__ a. Pacer White
__ b. Sand Dollar
__ c. Downy
__ d. Futon
__ e. Reliable White

The Association has approved only one color.

Don't guess when you paint!

Sample paint chips are available from Sherwin-Williams. Other paint supply stores should be able to match the color chip.

Answer: b. Sand Dollar #6099

SILVER CREEK TOWNHOMES ASSOCIATION Resolution of the Board of Trustees

Resolution # 25-01

Authorization to Conduct an Estate Sale

This Resolution (the "***Resolution***"), is hereby adopted by majority vote of a duly constituted Quorum of the Board of Trustees of the Silver Creek Townhomes Association on this ____ day of February, 2025 (the "***Resolution Date***").

RECITALS

WHEREAS; ARTICLE II Section 5 of the Declaration states: ***"The Trustees shall have the authority to***

promulgate rules and regulations for the governance of the Properties, and persons within the Properties."

WHEREAS; SECTION 3.8 of the Bylaws states: ***"A majority of the number of Trustees in office shall constitute a Quorum for the transaction of business at any meeting of the Board of Trustees. The act of a majority of the Trustees present at any meeting at which a Quorum is present shall be the act of the Board of Trustees."***

WHEREAS; On the Resolution Date, a Quorum was present and a majority of that Quorum did vote in the affirmative on this Resolution to wit;

THEREFORE BE IT RESOLVED; any Owner may conduct an Estate Sale from their Townhome on a 1-time basis, subject to the terms and conditions set forth below. An Estate Sale is defined as:

"A sale or auction to dispose of a substantial portion of the property/possessions owned by the Owner of a Townhome located in the Property, who is recently deceased or who must dispose of their property/possessions to facilitate a move."

Authorization to conduct any Estate Sale is subject to the following terms and conditions:

1. Written approval from the Board of Trustees authorizing the subject Estate Sale.
2. Appropriate Notice (in the form attached as Exhibit A – "Notice of Estate Sale") given to the surrounding

   Townhome Owners identified by the Board of Trustees.

3. All property/possessions involved in the Estate Sale must remain inside the Townhome.
4. The Length of the Estate Sale is limited to a maximum of three (3) consecutive days.
5. The Estate Sale will not interfere with the Quiet Enjoyment of other Owners in the community.

CERTIFICATION

I, THE UNDERSIGNED, do hereby certify that I am the acting President of The Silver Creek Townhomes

Association, a Utah nonprofit corporation, and that the Board of Directors thereof have adopted this Resolution as set forth herein.

IN WITNESS WHEREOF;

_____ Adam Witt – Board of Trustees President

PERMIT FOR ONE-TIME ESTATE SALE

Lot/Townhome # _____

Owner: _____

Pursuant to the authorization set forth in its Resolution #25-1, the Board of Trustees (the ***"Board"***), of the Silvercreek Townhomes Association (the ***"HOA"***), does hereby grant this permit (the ***"Permit"***), to the Owner referenced above, to conduct a one-time estate sale (the ***"Sale"***), subject to the terms, conditions and limitations set forth herein (the ***"Sale Terms"***).

Sale Terms:

1. **Duration of Sale:** The Sale is limited to a maximum of three (3) consecutive days, starting on _____ and concluding on _____.
2. **Operating Hours**: The Sale shall be conducted during the hours of 10:00 AM to 6:00 PM each day. No Sale activities may occur outside of these hours.
3. **Permitted Location**: All activities of the Sale will be confined to the Lot # referenced above. No Sale items will be displayed outside of the Townhome.
4. **Public Access & Parking:** The Owner must ensure that adequate parking is provided and that access to the Sale does not obstruct other residents' parking or traffic flow within the community.
5. **Signage:** Signage for the Sale is limited to one (1) sign displayed on the Lot as set forth in the Declaration.
6. **Description of Goods:** Items offered in the Sale are limited to personal and household items including furniture, clothing, appliances, collectibles, etc.
7. **Liability and Insurance:** The Owner assumes all responsibility for any claims of any nature that may arise as a result of the Sale and does hereby agree to indemnify, hold harmless and defend the HOA and Board from any and all claims or damages arising or resulting from the Sale.
8. **Compliance with HOA Rules:** The Owner must ensure the Sale complies with all applicable HOA rules, local ordinances and regulations including local licensing requirements. This includes compliance with noise and parking restrictions as outlined in the governing documents of the HOA.
9. **Enforcement of Conduct:** The Owner is responsible for maintaining order during the Sale. Any disruptive behavior must be addressed promptly.
10. **Revocation:** The Board reserves the right to revoke this Permit at any time, with or without cause, in its sole and absolute discretion.
11. **Non-Transferability:** This Permit is valid only for the specified Sale defined and referred to herein, and is non-transferable.

Board Authorization:

By: _____

Date: _____

Owner Acceptance and Agreement:

By: _____

Date: _____